

**SUPPLEMENTARY
EUROPEAN SEARCH REPORT**

Application Number
EP 09 72 6820

DOCUMENTS CONSIDERED TO BE RELEVANT			
Category	Citation of document with indication, where appropriate, of relevant passages	Relevant to claim	CLASSIFICATION OF THE APPLICATION (IPC)
X	WO 02/47701 A1 (ANGIOLAB INC [KR]; KIM MIN-YOUNG [KR]; PARK BYUNG-YOUNG [KR]; MOON CHA) 20 June 2002 (2002-06-20) * sentence 5 - sentence 11; claim 2 * * page 12, line 12 *	1-10	INV. A61K36/54 A61K8/97 A61P9/14 A61P17/00 A61P43/00 A61Q19/08
X	US 2005/266064 A1 (MCCARTHY KATHRYN J [US]) 1 December 2005 (2005-12-01) * paragraphs [0276], [0284]; claim 2 *	1-10	
X	JP 2007 261996 A (NARIS COSMETICS CO LTD) 11 October 2007 (2007-10-11) * abstract *	1-10	
X	KWON B-M ET AL: "Synthesis and biological activity of cinnamaldehydes as angiogenesis inhibitors", BIOORGANIC & MEDICINAL CHEMISTRY LETTERS, PERGAMON, ELSEVIER SCIENCE, GB, vol. 7, no. 19, 7 October 1997 (1997-10-07), pages 2473-2476, XP004136467, ISSN: 0960-894X, DOI: 10.1016/S0960-894X(97)10008-7 * page 2473; table 1 *	1-10	
X	DATABASE TDKL [Online] 1996, "Sūryaprabhāgutika", XP002666591, Database accession no. AK11/1517 * the whole document *	1-10	
The supplementary search report has been based on the last set of claims valid and available at the start of the search.			
Place of search Munich		Date of completion of the search 5 January 2012	Examiner Bochelen, Damien
CATEGORY OF CITED DOCUMENTS X : particularly relevant if taken alone Y : particularly relevant if combined with another document of the same category A : technological background O : non-written disclosure P : intermediate document		T : theory or principle underlying the invention E : earlier patent document, but published on, or after the filing date D : document cited in the application L : document cited for other reasons & : member of the same patent family, corresponding document	

ANNEX TO THE EUROPEAN SEARCH REPORT ON EUROPEAN PATENT APPLICATION NO.

EP 09 72 6820

This annex lists the patent family members relating to the patent documents cited in the above-mentioned European search report. The members are as contained in the European Patent Office EDP file on The European Patent Office is in no way liable for these particulars which are merely given for the purpose of information.

05-01-2012

Patent document cited in search report	Publication date	Patent family member(s)	Publication date
WO 0247701 A1	20-06-2002	AU 2274702 A	24-06-2002
		CN 1477967 A	25-02-2004
		EP 1349558 A1	08-10-2003
		JP 4173733 B2	29-10-2008
		JP 2004520294 A	08-07-2004
		US 2004009244 A1	15-01-2004
		WO 0247701 A1	20-06-2002
US 2005266064 A1	01-12-2005	NONE	
JP 2007261996 A	11-10-2007	NONE	

The examination is being carried out on the **following application documents**

Description, Pages

1-22 as published

Claims, Numbers

1-10 as published

Drawings, Sheets

1/6-6/6 as published

1 Prior art

Reference is made to the following documents; the numbering will be adhered to in the rest of the procedure:

- D1 WO 02/47701 A1 (ANGIOLAB INC [KR]; KIM MIN-YOUNG [KR]; PARK BYUNG-YOUNG [KR]; MOON CHA) 20 June 2002 (2002-06-20)
- D2 US 2005/266064 A1 (MCCARTHY KATHRYN J [US]) 1 December 2005 (2005-12-01)
- D3 JP 2007 261996 A (NARIS COSMETICS CO LTD) 11 October 2007 (2007-10-11)
- D4 KWON B-M ET AL: "Synthesis and biological activity of cinnamaldehydes as angiogenesis inhibitors",
BIOORGANIC & MEDICINAL CHEMISTRY LETTERS, PERGAMON,
ELSEVIER SCIENCE, GB,
vol. 7, no. 19, 7 October 1997 (1997-10-07), pages 2473-2476,
XP004136467,
ISSN: 0960-894X, DOI: 10.1016/S0960-894X(97)10008-7
- D5 NN ED - NN: "Suryaprabhagutika",
INTERNET CITATION, 1996,
Retrieved from the Internet:
URL: http://www.tkdI.res.in/tkdI/LangDefault/Formulation/Member_Docs/

BC/ayurveda/highlight.asp?a=/tkdl/LangDefault/Formulation/
Member_Docs/BC/Ayurveda/AK11-1517.asp&b=Cinnamomum+cassia
+and+Va-gasena?str=Global
[retrieved on 2012-01-04]

D6 KR 100 213 897 B1 (BEYONG-MOK KWON) 2 August 1999 (1999-08-02)

If not indicated otherwise the relevant passages are those mentioned in the search report.

It is noted that document D5 has been cited in a communication pursuant to Rule 114(2) EPC.

Document D1 discloses a composition comprising an extract of Cinnamomum cassia having anti-angiogenic activity and the use thereof for treating wrinkles.

Document D2 discloses compositions comprising a cinnamon extract or a cinnamon bark extract and the use thereof for treating wrinkles.

Document D3 discloses a composition comprising an extract of Cinnamomum cassia for inhibiting the formation of wrinkles.

Document D4 discloses that compounds isolated from Cinnamomum cassia Blume are angiogenesis inhibitors.

Document D5 discloses a composition comprising Cinnamomum cassia Blume for treating wrinkles.

Document D6 discloses that cinamnaldehyde present in Cinnamomum cassia Blume has angiogenesis inhibition activity (see examples 1 and 4).

2 Novelty (Art. 54 EPC):

Claim 1 is directed to a *vascular maturation, normalization or stabilization agent* which is an extract of a plant of the genus Cinnamomum. Claim 5 is directed to a *Tie-2 activation agent* which is an extract of a plant of the genus Cinnamomum. Claims 9 and 10 are directed to a *wrinkle preventer/improver* comprising an agent according to claims 1 and 5 respectively.

The features *vascular maturation, normalization or stabilization agent*, *Tie-2 activation agent* and *wrinkle preventer/improver* are not considered as characterizing the products of claims 1, 5 and 9-10 which are interpreted as being directed to an extract of a plant of the genus Cinnamomum. It is

furthermore noted that the inhibition of angiogenesis by extracts of Cinnamomum is known from D1, D4 and D6. The treatment of wrinkles with compositions comprising Cinnamomum extracts is known from D1-D3 and D5. The activation of Tie-2 is merely the mechanism of action which accounts for the angiogenesis inhibition by Cinnamomum extracts and does not confer novelty to a claim.

Consequently, it appears that claims 1, 5 and 9-10 are anticipated by the disclosure of documents D1-D6.

The dependent claims 2-8 as well lack novelty in view of D1-D6.

3 Inventive step (Art. 56 EPC):

Although present claims lack novelty the following is noted with regard to inventive step:

Document D1 which is the closest prior art discloses a composition comprising an extract of Cinnamomum cassia having anti-angiogenic activity and the use thereof for treating wrinkles. The problem to be solved is thus defined as to provide an alternative Cinnamomum extract for inhibiting angiogenesis and treating wrinkles. It would be obvious for a skilled person to use e.g. an extract of Cinnamomum cassia Blume which is known from D4 and D6 to inhibit angiogenesis. An inventive step would thus not be acknowledged.